Criminal Procedure and Practice

Special / Supplementary Examination - March 2024

Department: History, Political Science & Public Administration	**Course Code:** PSS 222
Examination: Special / Supplementary	**Exam Date:** March 2024
School / Faculty: School of Arts and Social Sciences (SASS)	**Academic Year:** 2023/2024
Semester: Not specified	**Time Allowed:** 3 Hours (70 Marks)

Instructions

Answer any FOUR Questions. All questions carry equal marks (17.5 Marks each).

Question 1 (17.5 Marks)

a) Describe how crime suspects are identified and interrogated. (7.5 marks)

b) Show the procedure followed by a police officer or other person making an arrest as provided in Section 21 of the Criminal Procedure Code. (10 marks)

Question 2 (17.5 Marks)

a) What is your understanding of a Search Warrant? Explain four essential contents of a warrant to search for and seize a person or property. (12 marks)

b) Under what circumstances can one challenge an unlawful arrest? (5.5 marks)

Question 3 (17.5 Marks)

a) Identify and explain the series of decision-making points through which offenders flow in the conventional justice system. (12 marks)

b) Examine the circumstances under which Post-Conviction Relief is granted. (5.5 marks)

Question 4 (17.5 Marks)

a) Highlight five important elements of procedural due process. (5.5 marks)

b) Discuss the responsibilities of the prosecution and the role of defense lawyers in the criminal justice process. (12 marks)

Question 5 (17.5 Marks)

Provide an adequate discussion of any four of the following theoretical models of justice: (17.5 marks)

(i) Crime Control Model

(ii) Justice Model

(iii) Due Process Model

(iv) Rehabilitation Model

(v) Restorative Justice Perspective

Question 6 (17.5 Marks)

The trial of a criminal case is a formal process conducted in a specific, orderly fashion, in accordance with the rules of criminal law, procedure, and evidence. Explain the basic chronological steps that a criminal trial follows. (17.5 marks)

Question 7 (17.5 Marks)

a) Explain five constitutional rights guaranteed to an accused person during trial. (10 marks)

b) Identify and explain four penological justifications for the imposition of a criminal sentence. (7.5 marks)

Question 8 (17.5 Marks)

Critically evaluate the advantages of community-based non-custodial criminal treatment programs as opposed to institutional incarceration. (17.5 marks)